ASIKODI MADAKE
versus
AFRICAN BANKING CORPORATION ZIMBABWE LIMITED
and
FLORENCE RWIDZAI MADAKE
and
DRILL RIG ENGINEERING (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
**MUSHURE J**
HARARE; 16 January & 21 April 2026

**Court application for condonation**

*M. T. Majome* for the applicant
*T. Nyamasoka* for the first respondent
No appearance for the second and third respondents

MUSHURE J:

**INTRODUCTION**

[1] This is an application for condonation of late filing of application for rescission of a default judgment purportedly granted by this court on 13 March 2024 under HCHC110/25. The application is predicated on the following summarised averments by the applicant- he only became aware of the default judgment in June 2025 when execution was already underway through a newspaper article because at the time process was served at his address of service, he was outside the country. The applicant is trying to salvage his matrimonial property, known as 16 Giraffe Close, Borrowdale West, Harare ('the immovable property'), which he jointly owns with his estranged wife, the second respondent in this matter, to whom he is still legally married although customary divorce rites have been performed and acknowledged by both families.

[2] The applicant avers that sometime in 2023, his wife requested and obtained his consent to pass a mortgage bond to borrow US$50 000 from the first respondent. He signed the

consent before a legal practitioner, namely Mr Ostern Mutero, at Sawyer and Mkushi Legal Practitioners. Although he was not given a copy of the consent, he vehemently denies consenting to bind himself as a surety and co-principal debtor for anyone, let alone the third respondent whom he does not even know. He also denies consenting to encumber his half share of the immovable property for an unknown third party's debt.

[3] The relationship with his wife deteriorated shortly after consenting to the passing of the mortgage bond. Resultantly, he ceased all communication with her and he relocated to Zambia. He had no reason to believe that his wife would not service the loan. Even if he learnt of the default judgment in June 2025, he only launched the current application in October 2025 because he did not have any documentary evidence to prove anything so to him, it was pointless to just challenge the default judgment. He was made to understand he had consented to the suretyship and the immovable property had long been auctioned in March 2025. He subsequently discovered that another law firm, Musoni Law Chambers, had filed an assumption of agency supposedly acting for him despite never giving them instructions.

[4] He finally had sight of the deed of suretyship on 10 October 2025, upon which he discovered that the signature against his name is not his and also the signature on his wife's deed of suretyship is not consistent with her name. He attaches several samples of his 'genuine' signature. His son, who is alleged to have witnessed the deed, disputes ever witnessing the deed. The applicant dismisses the deed of suretyship as a product of forgery.

[5] The application is opposed by the first respondent who initially argued in *limine* that the affidavits were improperly commissioned. The first respondent then abandoned the preliminary point at the hearing of the matter, On the merits, the first respondent contends that the applicant became aware of the default judgment long before June 2025 as confirmed by its affidavit opposing the applicant's urgent chamber application relating to the same dispute under HCHC615/25. The first respondent contends, further, that the applicant is deceitfully faking ignorance on the cause of the deed of suretyship because he and the second respondent executed the deeds at Mr Mutero's offices which were then were erroneously exchanged during the execution process but both of them signed to confirm their intention to execute the deeds, so this was a common error. The first

respondent argues that the common error cannot be denied by the applicant and the second respondent unless they are seeking to collude to defeat the auction sale. The first respondent argues, further, that a party cannot rely on a common error to avoid his contractual obligations. The first respondent avers that the applicant acknowledges the debt and he also ratified what the parties had agreed upon when he appeared before Mr Mutero to sign the power of attorney to register the Surety Mortgage Bond. The first respondent contends that the applicant is a resourceful debtor seeking to capitalise on the common error to avoid his obligations.

**SUBMISSIONS BEFORE THIS COURT**

[6] At the hearing of this matter, Ms *Majome*, for the applicant, submitted that when the applicant became aware of the default judgment in June 2025, he thought it was too late and he only engaged her in September 2025, following which she engaged the registrar to access the record but she could not because the applicant was allegedly legally represented by Mr Musoni. All along the applicant had been insisting that he did not sign any deed of suretyship but he then tried to salvage what he could by protesting the sale price. Ms *Majome* had signed a consent to pass transfer on his behalf in September 2025 so that the applicant could at least salvage some money from the sale of the immovable property. Ms *Majome* stated that there was clear evidence of fraud, even the witness' signature had been disputed by the signatory and the court ought to grant condonation in the circumstances. She stated that the applicant, despite being aware that a criminal act had been committed by forging his signature, had decided not to press any criminal charges because this was a family matter involving his wife whom he now suspected was in on the fraud since she had not supported this application as he had thought she would. I asked Ms *Majome* why the applicant was intending to file a plea in the event that rescission was granted if Mr Musoni entered appearance to defend without his instructions, to which Ms *Majome* responded that she was proceeding in terms of the rules.

[7] Appearing for the first respondent, Mr *Nyamasoka* submitted that at all material times the applicant was duly represented and he could not reasonably allege that he was not represented. He submitted that the applicant was alleging that Mr Musoni was not representing him but he had not attached an affidavit to that effect. Mr *Nyamasoka*

submitted that there was no good cause that satisfies granting of a rescission and the default order itself had not been attached therefore the court was incapacitated to fully assess the matter. He submitted that the circumstances pertaining to the signatures on the deed of suretyship had been fully explained through Mr Mutero's affidavit and that allegation of a fraud remained an allegation as there was no court order confirming the allegation. He also submitted that the intended application was founded on the wrong rule.

**ISSUES FOR DETERMINATION**

[8] The sole issue that arises for determination in this matter is whether or not the applicant has made a case for condonation to be granted.

**THE LAW**

[9] A long-standing principle of our law is that a party who fails to comply with the rules of this court should apply for condonation as soon as they become aware of the non-compliance, giving a fully detailed, reasonable and adequate explanation for the failure to comply with court rules: *Chiweza & Anor* v *Mangwana & 4 Ors* HH186-17 at p. 4.

[10] In giving this explanation, such an applicant must take the court into his confidence and give an honest account of his default to enable the court to make an informed decision whether to grant the indulgence he seeks: *Zimslate Quartzite (Pvt) Ltd & Ors* v *CABS* SC43-17 at p. 17.

[11] Essentially, a party seeking condonation and extension of time must, of necessity, satisfy the court there is a valid and justifiable reason as to why they failed to comply and why that failure should be condoned. Regardless of the prospects of success, a court may refuse to grant the indulgence of a condonation where it forms the view that the explanation for the non-compliance with the rules in unacceptable: *Lunat* v *Patel* SC 47-22 at p. 6.

[12] Thus, in order to succeed, the court considers the extent of the delay, the reasonableness of the explanation for the delay and the prospects of success: *Mzite* v *Damafalls Investment (Pvt) Ltd & Anor* SC 21-18 at p 2.

[13] The court also considers the possible prejudice to the other party, the need for finality in litigation, the importance of the case, convenience of the court and the avoidance of

unnecessary delays in the administration of justice: *Read* v *Gardner & Anor* 2019 (3) ZLR 575 (S) at p578 E-G.

[14] These factors are not individually decisive but a court is enjoined to cumulatively take them into account to arrive at a conclusion that is in the interests of justice to condone the non-compliance: *Dzvetero & Anor v Sakunda Trading (Pvt) Ltd & Ors* SC 161-21at p.3, and *Dardagan* v *Dardagan* SC26-26 at p. 12.

## APPLICATION OF THE LAW TO THE FACTS

### The extent of the delay and the reasonableness of the explanation of the delay

[15] According to the applicant, the default order was granted on 13 March 2024. At the time summons was served, the applicant was in Zambia. The applicant does not attach any proof to show that he indeed was in Zambia. What the applicant attaches is a temporary permit for the period 22 October 2024 to 22 January 2025. The period covered by the permit is out of the time the summons was served and the default judgment, granted. The permit therefore does not prove that at the time the summons was served or the default judgment was granted, the applicant was not within the jurisdiction.

[16] From the submissions made by Ms *Majome*, the applicant accessed the court record on 10 October 2025. There is no proof that Ms *Majome* only accessed the record then. Neither is there any proof of the efforts she made to access the record from the time she was instructed by the applicant on 18 September 2025 to 10 October 2025 when she allegedly finally accessed the record. In any event, her client was a party to the proceedings and he could have easily accessed the record on the Integrated Electronic Case Management System (IECMS) platform. I did not hear Ms *Majome* to argue that he was not registered on IECMS or that he was not linked to the matter, and if he was not, there was no explanation of the efforts the applicant made to access the record on IECMS. His physical absence from Zimbabwe did not affect his ability to access the record.

[17] To compound issues, the applicant does not attach the return of service to demonstrate that he was not served with the summons. It is not clear from his application whether the application for default judgment was served and if it was, upon whom it was served on his

behalf. The applicant does not even attach the default order. At the hearing of the matter, Ms *Majome,* brazenly suggested that since the summons record was before the court, I could have regard to it. She only later capitulated and conceded that she should have attached the default order. On Ms *Majome*'s suggestion, the Supreme Court spoke of a similar situation in *Doves Funeral Assurance (Pvt) Ltd* v *Harare Motorway (Pvt) Ltd & Ors* SC64-23 at p.8 in the following terms:

> "Firstly, there is no such invitation by the applicant in the founding affidavit for me to have reference to that file. Secondly, there is no such obligation on a judge dealing with such an application. In *John Chikura & Anor v Al Shams Global BVI Limited* SC17/17 the following was stated in respect of prolix grounds of appeal;
>
> > "It is not for the court to sift through numerous grounds of appeal in search of a possible valid ground; or to page through several pages of 'grounds of appeal' in order to determine the real issues for determination by the court. The real issues for determination should be immediately ascertainable on perusal of the grounds of appeal.""

[18] Additionally, I cannot better the words of my brother KWENDA J in *Tapvice Enterprises (Pvt) Ltd & Ors* v *Tetrad Investment Bank Limited* HH 230-20 at p3 that:

> For some reason the applicants have failed to attach the order which they want rescinded. There is no explanation why this court should be required to rescind a judgment it has not seen. While this court has the right to peruse all related files, that on its own does not create an obligation on this court to look for a related file and identify the relevant order. A court peruses related files to verify facts and not to identify, fish out and annex supporting documents. This application should have been submitted with all relevant information.

[19] Yet, that is not all. A reading of the applicant's founding affidavit will show that in one breath, he states that he became aware of the default judgment in June 2025 through an online publication and in another, he states that he saw the online publication in July 2025. His reference to two different months in which he became aware of the default judgment displays either that he is misleading the court or he has adopted an offhanded approach to this matter by failing to pay attention to critical details. Either way, the applicant does not attach this online publication. It fell upon the applicant to collate, analyse and present before the court the full data so as to support his averments in the founding affidavit. The applicant failed in this regard.

[20] Further, the applicant seeks to justify his inaction from June to September 2025 on the fact that he thought since the house had already been sold, there was nothing he could do. If

indeed he never executed the deed of suretyship, his behaviour is not consistent with a person who was about to lose his house on the strength of a transaction he was not aware of.

[21] However despite being 'unaware' of the deed of suretyship, on 23 September 2025 the applicant executed a special power of attorney in favour of Ms *Majome* to sign the agreement of sale, declaration by sellers, power of attorney to pass transfer, to attend any Zimbabwe Revenue Authority interviews in relation to capital gains tax assessment purposes and to do any other needful action in order to achieve the sale of the immovable property. On 25 September 2025, the applicant's legal practitioners wrote a letter to the respondent's legal practitioners. The relevant portion of that letter reads as follows:

> "As advised our client is estranged from his wife, who is separately represented and as a result has been deprived access to crucial information about the case. His living outside the country further compounds this. He has faced the loss of his house without clarity on how the matter has been dealt with.
>
> Kindly clarify to the best of your knowledge regarding the balance of proceeds from the sale of Mr. Oscar Njanji's house to satisfy his indebtedness to NMBZ and whether any portion of the balance was applied towards settling your client's loan. More importantly please enlighten us if the properties pledged were sold before selling the house and the quantum realised from the sale.
>
> Please understand that he is only trying to understand and not cause unnecessary inconvenience or delay."

[22] What I find curious is that the applicant executed a special power of attorney to dispose his portion of the immovable property in a matter in which, going by his version, he did not only sign the deed of suretyship, but he also was not involved in. In my view, by passing the special power of attorney in September 2025, long after the default judgment had been granted in March 2024 and remained extant, the applicant acquiesced to the default judgment. He is now seeking to undo the same default order for which he has already executed a special power of attorney. Clearly, the applicant is approbating and reprobating. That he cannot do: See *Mining Commissioner -Masvingo NO & Ors* v *Finer Diamond (Pvt) Ltd* SC38-22 at p.4.

[23] Ms *Majome* explained that the applicant was trying to salvage the little money he could and in doing so, he even went to the extent of protesting the sale price. Now, if the applicant was oblivious of the transaction forming the basis of the default judgment, one

wonders why he would go to such lengths to execute a special power of attorney legitimising a fraudulent transaction and even challenge the sale price borne out of a fraud. The applicant had no business seeking to gain a financial advantage in circumstances where he was losing his house to a con. The fact that he then became aware of the fraudulent signature on 10 October 2025 does not even come to the applicant's aid because the bottom line is that at the time he became aware of the default judgment, it must have occurred to him that he was never involved in this case and a potential fraud had been committed, even if he had not had sight of the documents, such that the minute he was confronted with a need to pass a special power of attorney, he should have raised alarm. He did not.

[24] As if that was not enough, he then instructed his counsel to pen a letter to the first respondent's legal practitioners, not alleging any fraud, but seeking clarity on how 'the matter was dealt with'. He even gave details showing that not only was he aware of Mr Oscar Njanji's identity, but he also knew that he was indebted to NBMZ and his own house had been sold. The applicant also knew that there were movables that had been pledged. There is no indication whatsoever in that letter of the applicant not knowing Oscar Njanji as he now alleges in his founding papers. There is no challenge whatsoever to the basis upon which the immovable property was being sold, even if he had never executed a deed of suretyship in favour of the unknown Oscar Njanji or the third respondent. The applicant's legal practitioners actually state in the letter that he was not trying to cause 'unnecessary inconvenience or delay' but just trying to understand. If the applicant was not aware of the whole transaction and he had never interacted with Oscar Njanji in his lifetime, this was the perfect opportunity for him to say so. Again, he did not. Instead, his 25 September 2025 letter betrays his intimate knowledge of Oscar Njanji, the loan and the cause for the default order earlier than 10 October 2025.

[25] As for the applicant's allegation that he never instructed Mr Musoni, he initially made a bare allegation to that effect. When the first respondent challenged the applicant that he had not even attached an affidavit from Mr Musoni confirming his allegations, he then deposed to an answering affidavit to which he attached a letter authored on a without prejudice basis to the following effect:

> "The above refers and your request to us to comment in respect of the above.
> Please note that your client's estranged wife sought our services to defend them in the matter together with Drill Rig Engineering P/L in the matter.
> We duly entered appearance to defend on behalf of both defendants but we could not file plea since there was none to offer despite repeated request to the defendants"

[26] The request to Musoni Law Chambers is not attached. The contents remain a mystery, so is the reason why a letter meant for the court is marked 'Without prejudice'. The response to the request itself does not speak to Mr Musoni being involved via misrepresentation to him that the applicant was in concert with the people who gave him the mandate. That letter is attributed to Mr Musoni, but there is no telling that it was indeed authored by Mr Musoni. There is no explanation why the applicant, knowing that his immovable property was at stake, found comfort in an ambiguous letter instead of an unequivocal affidavit from Mr Musoni confirming the applicant's allegation that he did not have a direct mandate from the applicant. If indeed Mr Musoni had acted in the basis of that grave error, it would have been prudent for him to depose to an affidavit admitting the fault and explaining in some detail what actually transpired. This would have assisted the court in coming up with a just decision to separate the actions of the applicant from those of Musoni Legal Practitioners. The applicant's explanation cannot be adequate in the absence of an affidavit from Mr Musoni who is being blamed for representing the applicant without his mandate: See *Ganda & Ors* v *First Mutual Life Assurance Society* SC1-05 at p.6, *Chibanda* v *City of Harare* SC83-21 at p.9 and *Jockstar Investments (Pvt) Ltd* v *Dzumbira & Anor* SC104-25 at p.9.

[27] In my analysis, if indeed the applicant became aware of the default judgment in June 2025, he has not explained what he was doing from June to 18 September 2025 when he finally instructed counsel. His explanation that he did not have any documents to act against the default judgment is not reasonable, considering that he approached counsel on 18 September 2025, without the very same documents he did not have in June 2025. Nothing stopped him from approaching counsel in June 2025, if he could still approach counsel in September 2025, on the same footing. He has not placed before me any valid and justifiable reason why he had to wait for four months to act.

[28] I am also of the view that his explanation he could not approach the court because he thought he had no basis for doing so is lame, because the mere fact that a court order had

been made against him in default was sufficient to approach the court, moreso considering that he was not even aware of the third respondent in this matter.

[29] The need to take the court into confidence in seeking condonation is not satisfied in this matter. If anything, this case is marked by a litany of bare averments made by the applicant which disable the court to make a value judgment.

**Prospects of success**

[30] The sole basis of the applicant's application is that a fraud was allegedly committed in the execution of the deed of suretyship. In the case of *National Foods Ltd* v *Knight Frank (Pvt) Ltd* 2018 (2) ZLR 493 (H), the court stated that:

> "A party that relies on fraud is not only required to plead fraud; it must also prove it."

[31] Once fraud has been established, the court is stripped of any residual discretion and is duty bound to grant the condonation and consequently, the rescission: *Norwich Trading (Private) Limited* v *Muzavazi & Ors* SC01-26 at p.12. A judgment procured by fraud cannot stand.

[32] In the case of *Kadzviti & Another* v *Chinhamora & Ors*, HH119-25 at p.5 the court stated that:

> "Fraud and forgery cannot be substantiated by hollow allegations. The Applicants needed to go a step further in establishing and properly pleading forgery and fraud for the court to make a determination in their favour. No police report or decision of criminal court against the 1st Respondent was placed before my attention to substantiate the allegations of fraud and forgery. In light of this, it became impossible for me to make a determination in the absence of sufficient evidence for fraud or forgery"

[33] There are averments made by the applicant and his counsel which are striking and deserve comment. Firstly, the applicant avers in his answering affidavit that 'the objective trigger for action was sight of the impugned surety deed on 10 October 2025, which exposed the signature anomaly'. A reading of this averment leads one to conclude that the answering affidavit does not dispute the suretyship deed, but the signature. Yet, in paragraph 4.2. of his founding affidavit, the applicant avers that

> "I do not know the principal debtor Drill Rig Engineering (Pvt) Ltd and its representative Oscar Njanji or his whereabouts. I have never met him let alone to provide suretyship for his company"

[34] It is only when the first respondent attaches correspondences showing that the applicant knows Oscar Njanji that he turns around and states that what triggered him to act was his anomalous signature on the deed of suretyship. This is the height of disingenuity.

[35] Secondly, in his founding papers, the applicant leans heavily on an affidavit deposed to by his son, Tinotenda Madake. The son makes another bare averment that at the material time the deed was allegedly executed, he was not even in Harare. He does not state where he was, let alone place any proof that he indeed was not in Harare. He then curtly deposes that he absolutely has nothing to do with this case and emphasises that he does not want to be involved in it beyond the affidavit. Unfortunately, that does not advance the applicant's case because I still have bare allegations which have been characteristic of this application. The signatures which he calls upon the court to verify do not help him because a person can still sign a different signature to buttress a narrative they want the court to believe. There is no confirmation from any expert to prove that the signatures attributed to the applicant and his son are indeed fake.

[36] Thirdly, the applicant's counsel submitted at the hearing of the matter that despite being aware of a criminal activity wherein his signature was forged, he chose not to take any criminal action against the alleged perpetrator of that fraud. She added that the applicant now suspected that his estranged wife was the author of that fraud but for the sake of the family, he did not want to rock the boat as it were. I find that explanation spurious. If the couple is estranged as the applicant purports, there is no family to save, so that cannot be a valid reason not to report what according to him is a clear fraud.

[37] Further, in his founding affidavit, the applicant alleges that his, his wife's and his son's signatures were all forged. He does not state by who. He only sought to pass the buck to the second respondent during the hearing of the matter on the basis that she did not support him in his bid to reverse the judgment. But, if there is any fraud to speak of, it is clear that the mastermind would be Mr Ostern Mutero, who deposed to an affidavit explaining the circumstances leading to the execution of the both suretyship deeds. Yet, despite the evidence of fraud, the applicant does not take his matter to the police.

[38] What I find most curious in this case is that the applicant seemed so comfortable to unjustifiably lose his immovable property without moving an inch. He cannot state that he

had resigned to fate in the circumstances he describes. The only sensible conclusion I could reach for the applicant's actions was that he could only do so because he was aware of the whole transaction and when he studied the deed of suretyship, he seized the opportunity, and decided to be crafty by maximising on the mistake. Regrettably, he appears to be doing so with the aid of his legal practitioners. The applicant's conduct smacks of an attempt to save his immovable property which he lost through a process he is clearly aware of. He is obviously clutching at straws.

[39] This brings me to the issue of common mistake that has been raised by the first respondent. In *Golden Beams Development (Pvt) Ltd* v *Mabhena* HH 296-21 at p7 of the cyclostyled judgment, the court makes the following remarks regarding the principle of common mistake in contract law:

> "Common law recognises three types of mistakes being common mistake, mutual mistake and a unilateral mistake. A mistake is either one of fact or law. In *Contract General Principles,* by van Der Merwe, 4 ed, 2012, at p 25 the authors describe a common mistake as follows,
>
> > 'A common mistake is said to be present where both parties to an agreement labour under the same incorrect perception of a fact external to the minds of the parties. Such a mistake, of course, does not lead to dissensus; the parties are in complete agreement although their consensus is based on an incorrect assumption or supposition'".

[40] In my view, after assessing the surrounding circumstances of this matter, I have not been given any valid reason to doubt that there was a common mistake at the time of executing the deeds of suretyship. I find that the applicant, his wife and his son attended to Mr Mutero's offices on 10 March 2023 to execute the deeds of suretyship in favour of the third respondent. I do not have any reason to doubt the first respondent's averments in its opposing affidavit filed in the urgent chamber application and attached to the opposing affidavit in this matter, that the mistake arose because both the applicant and his wife were present and they were given the documents to sign at the same time. I have also not been given any reason to doubt that no one realised the common error and the applicant ratified the deed of suretyship on 17 March 2023 when he executed the power of attorney to pass bond. The power of attorney is for the sum of US$200 000. The applicant's allegation that the power of attorney does not mention the third respondent or any undertaking to stand surety for its debt does not make any sense, because the power of attorney refers to an

attached draft deed initialled by the applicant and his wife. That deed contains the details of the applicant's immovable property.

[41] What the applicant does not explain is the reason why he was signing a power of attorney for the sum of US$200 000 if the loan his wife took was in the sum of US$50 000. In my view, the fact that the applicant passed a power of attorney for the registration of a first bond in the sum of US$200 000 shows that he was aware of the transaction, and he ratified it.

[42] Critically, the applicant does not dispute Mr Mutero's averments on oath that the only transaction he had with the applicant and his wife related to the US$200 000 facility. Mr Mutero's evidence on affidavit to that effect has not been challenged by the applicant, and it is taken to be admitted: *Fawcett Security Operations (Pvt) Ltd* v *Director of Customs and Excise & Ors* 1993 (2) ZLR 121 (S). In my view, the applicant had no reason to sign a power of attorney for a debt he was not aware of. I therefore find that indeed, the parties executed the deeds of suretyship labouring under the same incorrect perception that the applicant and the second respondent had appended their signatures on their respective deeds. Such an error did not lead to any dissensus, given that the applicant then passed a power of attorney in respect of the same debt and the same immovable property before the same legal practitioners. I find that the parties were in complete agreement although their consensus was based on an incorrect assumption that the deeds were correctly executed. I find that there was a common mistake between the parties. The applicant cannot seek to escape the consequences of the deed of suretyship he executed with his eyes fully open simply because of a common mistake.

[43] Before I conclude this matter, I find it necessary to comment that the applicant and his counsel have approached this matter in a cavalier manner. In addition to the omissions outlined in this judgment, even the intended application for rescission is based on the wrong rule, namely r63 of the High Court Rules, 2021. Firstly, r63 relates to interpleader proceedings. Secondly, despite the clear provisions of r4 of the High Court (Commercial Division) Rules 2020, there is no explanation why the applicant would be seeking to rely on the High Court Rules 2021 instead of this Division's Rules and then adopt the procedure outlined in r15 of the High Court (Commercial Division) Rules. I also find it peculiar that

despite spirited averments that the applicant did not instruct Mr Musoni, he now intends to stand on the appearance to defend Mr Musoni entered without the applicant's mandate by proceeding to file a plea in this matter, should the condonation and subsequent rescission be granted. This action speaks volumes.

**DISPOSITION**

[44] I find the applicant's explanation for the delay unreasonable and remarkably insufficient to satisfy the court that he ought to be granted the indulgence he seeks. The applicant's prospects of success in the application for rescission are very dim. The application has no measure of merit at all and has been filed merely as a ploy to cause an unnecessary delay in the administration of justice. There must be finality to litigation. I hold that the applicant has not made a case for the granting of condonation in this matter. His application stands to be dismissed.

[45] On the question of costs, I find that the first respondent's prayer for costs on a higher scale is justified for the following reasons: the applicant executed a deed of suretyship in favour of the third respondent, whom he knew. He went on to execute a power of attorney to pass a mortgage bond to secure the loan advanced to the third respondent. He proceeded to execute a special power of attorney in favour of his legal practitioner to pass transfer of the immovable property. Only when he was faced with the auction of his immovable property in October 2025, did he file the present application and another an urgent chamber application. In my view, the applicant's conduct is consistent with a person who intends to derail a judicial process. In order to push his agenda, the applicant was dishonest, and his conduct, reprehensible.

**ORDER**

[46] In the result, it is ordered that

1. The application be and is hereby dismissed with costs on a legal practitioner and client scale.

**MUSHURE J**:……..

*Mangachena Attorneys*, applicant's legal practitioners
*Costa & Madzonga*, first respondent's legal practitioners